

As is required for any fraud-based cause of action, the elements of a cause of action for fraudulent concealment must be pled with specificity. Linear Technology Corp. v. Applied Materials, Inc. (2007) 152 Cal.App.4th 115, 132.

The duty to disclose element of fraudulent concealment often arises out of a fiduciary relationship between the plaintiff and defendant. Doe v. Superior Court (2015) 237 Cal.App.4th 239, 244.

Plaintiff's complaint does not plead any specific facts supporting a fiduciary relationship on the part of ARTHUR. All it contains are conclusory allegations, largely regarding the actions of PORTA, which aside from the conclusory labels prescribed by Plaintiff are not necessarily inconsistent with his duties as trustee of the SNT, and thus may not even constitute violations of PORTA's fiduciary relationship with Plaintiff.

The demurrer by ARTHUR to Plaintiff's (initial) complaint is therefore sustained as to all of these causes of action, with leave to amend as to all but the 2nd cause of action for breach of fiduciary duty and the 3rd cause of action for civil conspiracy, but also subject to another concern the court has with this litigation, discussed in detail below.

In general, while most adults have capacity to bring a lawsuit, a person who lacks legal capacity to make decisions or one for which a conservator has been appointed does not. Instead, such a person can appear in a civil action only by a conservator or a guardian ad litem. C.C.P. §372(a)(1).

Subsection (a)(2)(A) gives the court authority to appoint a guardian ad litem for an adult "who lacks capacity to make decisions" when the judge deems it "expedient" to do so.

A guardian ad litem may be appointed in any case when it is deemed by the court in which the action or proceeding is prosecuted, or by a judge thereof, expedient to appoint a guardian ad litem to represent the minor, person who lacks legal capacity to make decisions, or person for whom a conservator has been appointed, notwithstanding that the person may have a guardian or conservator of the estate and may have appeared by the guardian or conservator of the estate.

A "dependent adult" may not always "lack capacity to make decisions". However, there is some evidence already before the court that suggests that Plaintiff may qualify as both, and thus may require the assistance of another to properly pursue her claims.

The court notes that Plaintiff's sister Rachele Eschenburg filed a declaration in a different case, one filed by PORTA, Case No. pr26-000242 to be relieved from his position as successor trustee to the SNT. Eschenburg's declaration was as a proposed guardian ad litem, because Plaintiff "is a dependent adult who needs assistance navigating complex multi-case litigation", who although "capable of making decisions about her life" still "requires support in managing the procedural and administrative demands of this legal

matter”. But since Eschenburg is not a licensed attorney, if she were to file an application for appointment as guardian ad litem in the general civil case at hand, she would have had to retain one to serve as Plaintiff’s guardian ad litem. The same would be true of anyone other person who is not a licensed California attorney who might file a petition to be appointed guardian ad litem for Plaintiff in the case at hand. J.W. v. Superior Court (1993) 17 Cal.App.4th 958, 968 [“We conclude that neither the common law nor guardianship statutes sanction an exception to the State Bar Act prohibition against the unauthorized practice of law in favor of guardians acting for their wards”]; Torres v. Friedman (1985) 169 Cal.App.3d 880, 888 [“ The withdrawal of counsel as distinguished from the substitution of qualified counsel leaves the guardian ad litem in the untenable position of perhaps committing a misdemeanor: practicing law without a license”]; In re Gordon (1980) 108 Cal.App.3d 907, [father who was not a licensed attorney could not act as co-counsel with public defender in representing son in criminal proceedings].

The court therefore will separately issue an Order to Show Cause to Plaintiff as to why the court should not find her to lack capacity to represent herself in the case at hand. If the court at this evidentiary hearing makes the determination that Plaintiff lacks capacity, to proceed further in this action, such as by filing an amended complaint, Plaintiff would first need to have a guardian ad litem apply for appointment, and be appointed. Such an applicant, if not a licensed California attorney, would as a condition of appointment be required to retain a licensed California attorney. Such an attorney filing an amended complaint would be subject to the standard set forth in C.C.P. §128.7(b) of being held to have certified to the best of their knowledge, information and belief, formed after an inquiry reasonable under the circumstances, that the amended complaint (1) was not being presented primarily for an improper purpose; (2) that the claims are warranted by existing law or nonfrivolous argument for extension, modification or reversal of existing law; and (3) that the allegations and other factual contentions have evidentiary support, or are likely to after reasonable opportunity for further investigation or discovery.

To allow for sufficient time to complete the OSC process, and thereafter for Plaintiff or any person interested in applying to serve as her guardian ad litem (if the court at OSC hearing so determines) to consult with and/or retain counsel, ARTHUR’s demurrer to Plaintiff’s complaint is sustained, as to all causes of action other than the 2nd cause of action for breach of fiduciary duty and the 3rd cause of action for civil conspiracy, with leave to amend within 90 days.

9: 30 a.m. CALENDAR

LINE

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IN THE MATTER OF P.O.A. OF WILLIE D. TURNER, SR.
FPR051895

Order to Show Cause to Willie D. Turner, Jr.

PREGRANT ORDER

Counsel and parties to appear. Willie D. Turner, Jr. to appear for his Order to Show Cause. Remote appearances are approved. The court notes that an accounting was filed and is calendared for July 20, 2026 at 9:30 a.m. in Department 22.

LINE

3

IN RE THE ESTATE OF KENNETH JAY BRANN, DECEASED
PR23-00419

Review/Compliance Hearing Re: Filing the Petition for Final Distribution

PREGRANT ORDER

Counsel and parties to appear. Remote appearances are approved.

LINE

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IN RE THE ESTATE OF HARRY JOSEPH RALSTON, SR., DECEASED
PR24-00638

Second Amended Report of Waiver of Accounting and Petition for Final Distribution and For Allowance of Statutory Compensation to Attorney For Ordinary Services

PREGRANT ORDER

The court continued this matter to allow the petitioner to address the issues which have all been resolved now by the Second Amended Petition. Therefore, absent any objections the court intends to find the following:

The court finds all notices have been given as required by law. The petition is granted as prayed except that release of liability and discharge shall be ordered only upon the filing of the Ex Parte Petition for Final Discharge and Order once assets are distributed pursuant to Probate Code section 11753. All future compliance hearings are vacated.
